

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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NADINE DAVIS,

Plaintiff,

**AMENDED
VERIFIED COMPLAINT**

-against-

Index No.: 522310/2018

THE CITY OF NEW YORK, DETECTIVE
JEREMY VEIT (Shield No. 2516), SERGEANT ROBERT
BARNETT, OFFICER AMADEO OKTROVA, and
OFFICER JOHN ILES,
Individually and in their official capacities,

Defendants.
-----X

Plaintiff, NADINE DAVIS by her attorneys, THE LAW OFFICE OF CHRISTOPHER
H. FITZGERALD, complaining of the Defendants, respectfully alleges, upon information and
belief:

I. PRELIMINARY STATEMENT

1. This is a civil rights action in which the Plaintiff, NADINE DAVIS seeks relief
for the defendants' violation of her rights secured by the laws and Constitution of the State of
New York. Plaintiff seeks compensatory and punitive damages, an award of costs, interest and
attorney's fees, and such other and further relief as this Court deems just and proper.

2. The acts complained of began with the warrantless entry into the plaintiff's home,
and subsequent search of the home by officers and agents of the New York City Police
Department. In the absence of consent or any credible reasoning for exigent circumstances,
NYPD agents continued with their unconstitutional search, culminating in the arrest and
imprisonment of the plaintiff. The emotional and psychological anguish were so severe that the
plaintiff was transported to the hospital during her incarceration, which was a direct result of the

unconstitutional abuse of authority and deprivation of liberty. The charges against the plaintiff were dismissed in the interest of justice.

II. JURISDICTION and PROCEDURAL HISTORY

3. That his action is brought pursuant to the common law of the State of New York, The New York State Constitution, and any other applicable statutory and regulatory provisions.

4. That prior to the institution of this action, and within 90 days of the accrual of the claims herein, a Notice of Claim was duly served upon and filed with the City of New York on behalf of the plaintiff on or about June 15, 2016.

5. That on or about September 6, 2016, a hearing was conducted by the CITY OF NEW YORK pursuant to General Municipal Law §50(h).

6. That on or about June 16, 2017, and within a year and 90 days of the accrual of all claims, a complaint was filed in the Southern District of New York under docket number 17-CV-4575, which included claims under 42 U.S.C. §1983 and New York State law.

7. That on or about August 14, 2017, this matter was transferred from the Southern District of New York to the Eastern District of New York upon the order of the Honorable Andrew L. Carter, Jr.

8. That on or about January 1, 2016, an Answer was interposed on behalf of defendants the CITY OF NEW YORK and JEREMY VEIT.

9. That on or about May 22, 2018, the Honorable Roanne L. Mann, Magistrate Judge of the Eastern District of New York, issued an order dismissing the federal claims against the defendants and declining to exercise the Court's supplemental jurisdiction over plaintiff's claims under New York State Law.

10. That Plaintiff's claims under New York State law have been preserved, as they have not been dismissed nor voluntarily discontinued, and that this Verified Summons and Complaint has been filed within 6 months of the District Court's order and decision declining to exercise its supplemental jurisdiction over the state law claims.

V. THE PARTIES

11. That at all times hereinafter mentioned, the plaintiff was a resident of the City and State of New York.

12. That at all times hereinafter mentioned, the defendant, the CITY OF NEW YORK, was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.

13. That at all times hereinafter mentioned, the defendants, DETECTIVE JEREMY VEIT, SERGEANT ROBERT BARNETT, OFFICER AMADEO OKTROVA, and OFFICER JOHN ILES were and still are employed by the NEW YORK CITY POLICE DEPARTMENT.

14. That at all times hereinafter mentioned, the defendant officers and/or detectives were acting within the scope and course of their employment with the NEW YORK CITY POLICE DEPARTMENT, and under the color of state law.

15. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in the New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

VI. STATEMENT OF FACTS

16. On or about March 18, 2016, at approximately 12:30 in the morning, plaintiff NADINE DAVIS was in her duplex apartment located at 1802 Sterling Place in Brooklyn, Kings County, City and State of New York.

17. On this date and at this time, plaintiff was in her bedroom when she heard a knock on the door. Plaintiff looked through her second-floor window and observed multiple NYPD police officers in plain clothes at the front door.

18. Plaintiff went downstairs to the door. Plaintiff opened the door and the officers immediately forced their way in and began searching the apartment.

19. Defendant Officers did not have a warrant to search or enter the apartment.

20. Plaintiff indicated that she was home alone and was not aware of anyone entering her apartment.

21. Defendant Officers then told the plaintiff that they smelled marijuana.

22. Plaintiff was not smoking marijuana during the time this incident occurred.

23. Defendant officers never produced a warrant to enter or search the plaintiff's apartment.

24. Defendants were never given consent to enter the apartment, nor were they given permission to search the apartment.

25. No exigent circumstances existed during the time of the warrantless entry.

26. At this point, plaintiff asked the officers to leave. When they did not, plaintiff proceeded to call 911, and announced to the officers that she was calling for help.

27. In response to this, one of the defendant officers wrestled the phone away from the plaintiff. Thereafter, the officer proceeded to place her in handcuffs.

28. Plaintiff was placed in her bedroom and told to sit down. During this time, the officers proceeded to search a second bedroom – the bedroom belonging to plaintiff's son.

29. Plaintiff observed the officers close the door while the second room was being searched. Once the officers emerged from this second bedroom, plaintiff heard one of the officers say that they found marijuana and a gun.

30. Plaintiff was then taken out of her apartment by – upon information and belief – DEFENDANT VEIT, BARNETT, OKTROVA, and/or ILES, and transported to the 73rd Precinct.

31. Many of the plaintiff's neighbors were outside and witnessed the arrest.

32. After going through central booking and within an hour of being placed in the holding cell, plaintiff began experiencing symptoms of an anxiety attack. Plaintiff suffers from anxiety which is triggered by placement in small and closed quarters.

33. Plaintiff sought medical attention and alerted the police officer at the 73rd precinct of her condition.

34. While in police custody, plaintiff asked the officers for food and drink. Officers did not give the plaintiff anything to eat or drink.

35. The officer warned the plaintiff not to bother him or he would make her live a "living hell."

36. Plaintiff pleaded for medical attention a second and third time and was ignored until she began vomiting as a result of her worsening anxiety attacks.

37. At approximately 5 o'clock in the morning, on March 18, 2016, plaintiff was transported, via ambulance, to the emergency room at Brookdale Hospital.

38. While at Brookdale, plaintiff learned that, in addition to her anxiety attack, her sugar was low. She was given food, juice and medication before being released from the hospital and transported back to the precinct.

39. Plaintiff was formally charged with Criminal Possession of a Firearm and Unlawful Possession of Marihuana.

40. After being imprisoned for approximately 13 hours, plaintiff was released on her own recognizance.

41. On or about June 6, 2016, the charges against plaintiff were dismissed in the interest of justice.

42. It is not disputed that during the time of the incident, the NYPD Officers did not have a warrant to enter or search the home of the plaintiff.

43. Any excuse that there were “exigent circumstances” necessary to forcibly enter premises is a dubious rationalization and an embellishment of actual events. The NYPD Officers, DEFENDANT VEIT, BARNETT, OKTROVA, and/or ILES, without offering the plaintiff any details about who or what they were looking for, automatically deemed the apartment a “crime scene.” Moreover, when assured by the plaintiff that she had been alone in the apartment, the Officers offered a secondary, yet equally unfounded excuse of having smelled marijuana.

44. At no point did the officers explain to the plaintiff that they were searching for drug related evidence.

45. At no point did the officers explain to the plaintiff that they were searching for any evidence in connection with the plaintiff.

46. As a result of the actions of the agents of CITY OF NEW YORK POLICE DEPARTMENT, plaintiff developed symptoms of emotional and psychological trauma, from which she suffers to this day.

47. The psychological and mental anguish that plaintiff suffered were a direct consequence of the unconstitutional entry and search of the plaintiff's home and her subsequent unconstitutional arrest.

FIRST CLAIM FOR RELIEF:
FALSE IMPRISONMENT

48. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

49. Plaintiff's home was entered and searched in the absence of probable cause, and plaintiff was subsequently arrested at the direction of, or under practices, policies or customs promulgated by the aforesaid individually named defendants and other agents of the NEW YORK CITY POLICE DEPARTMENT.

50. Defendants VEIT, BARNETT, OKTROVA and ILES entered the plaintiff's home absent any warrant.

51. There were no exigent circumstances giving rise to a warrantless entry of plaintiffs' home.

52. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.

53. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer psychological and emotional injuries, violation of her civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to her reputation and her standing within her community.

54. As a result of defendants' impermissible conduct, plaintiff demands judgment against defendants in a sum of money to be determined at trial.

SECOND CLAIM FOR RELIEF:
MALICIOUS PROSECUTION

55. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

56. At the aforementioned times and locations, plaintiffs were detained and held under the imprisonment and control of the defendants DETECTIVE VEIT, BARNETT, OKTROVA and ILES , and other unidentified officers without probable cause.

57. Defendants commenced the criminal action against the plaintiff in the absence of any probable cause that a crime had been committed.

58. Defendants commenced this criminal action out of malice.

59. The criminal action against plaintiff has terminated in her favor.

60. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

61. Any attendant criminal complaint or felony indictment that resulted was the product of fraud, perjury, the fabrication of evidence, or other police conduct enumerated above undertaken in bad faith.

62. That as a direct, sole and proximate result of the defendants' actions, plaintiff was caused to sustain psychological trauma, humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal reputation, inconvenience, fear of losing her job, fear and distrust of the police, and the disturbance and disruption of life. Plaintiff's loss of liberty amounts to 13 hours of incarceration.

THIRD CLAIM FOR RELIEF
NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION and TRAINING

63. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

64. Defendant CITY OF NEW YORK negligently hired, screened, retained, supervised, and trained the individual defendants. The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York and the United States Constitution.

65. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of her civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to her reputation and her standing within her community.

66. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer psychological and emotional injuries, violation of her civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to her reputation and her standing within her community.

67. As a result of the defendants' impermissible conduct, plaintiff demands judgment against defendants in a sum of money to be determined at trial.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages, including loss of income;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

DATED:

New York, New York
November 20, 2018

Respectfully submitted,

The Law Office of Christopher H. Fitzgerald
Counsel for Plaintiff

/s/

Christopher H. Fitzgerald
233 Broadway, Suite 2348
New York, NY 10279
(212) 226-2275

ATTORNEY'S VERIFICATION

CHRISTOPHER H. FITZGERALD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiff, NADINE DAVIS . I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

DATED: New York, New York
 November 20, 2018

_____/s/_____
Christopher H. Fitzgerald, Esq.

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SUMMONS AND VERIFIED COMPLAINT

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